

THE INVESTigator

A monthly newsletter published by Swap Global Ventures Pvt. Ltd., Nagpur

Vol 18 No.10

January 2022

WISHING ALL OUR INVESTORS, READERS AND WELL WISHERS
A VERY HAPPY, PROSPEROUS AND HEALTHY
NEW YEAR 2022

Are Indians Prepared for Retirement?

Recently Max Life Insurance conducted a study on 1816 respondents to check their preparedness for retirement. This is what they have concluded in their study:

- ✓ Four out of five people fear their savings will not last through retirement and regret that they should have started planning earlier.
- ✓ Of the respondents, 25% feel their savings will last for 5 years, 30% feel 5 to 10 years while 27% feel more than 10 years. Only 18% feel their savings will last for entire retired life.
- ✓ Surprisingly, 23% of respondents say they have not even thought about retirement planning.
- ✓ On when one should start retirement planning, 41% feel it can be done simultaneously with other responsibilities. However, a good 38% feel that retirement planning should start as one starts earning.
- ✓ Almost 68% of respondents have a positive outlook towards retirement. For them it means tension free life, more independence, more luxury travel, etc. Whereas 32% have negative feelings about retirement. They feel it means ill health, boring life, dependence on others, loneliness, etc.

Get Ready For Investing In Silver

- ❖ Recently SEBI has given permission to Mutual Funds to launch Silver ETF's.
- ❖ A number of Fund Houses will be launching Silver ETF and also Fund of Fund (FOF) investing in Silver ETF.
- ❖ These funds will be tracking the price of Silver and will be investing primarily in physical Silver and Silver related instruments.

All About - WILL

A WILL is a legal document that clearly sets out your wishes for the distribution of your assets after your death. It should be done in the presence of two witnesses.

Any person who is a major and has good mental health can make a will. A will obtained by force or undue influence will not be valid as it has not been made by the free will of the testator. A person can make a will at any time during his lifetime, provided he is a major. There is no restriction on age or the number of times a will can be made.

Drafting a Will is very easy but at the same time the most neglected aspect. Legally speaking, you can just jot down all the properties' or assets' details in a piece of paper (Stamp paper is not required). Mention the beneficiaries' name(s) and sign on it. Get it attested by two independent witnesses. It is recommended that witnesses should not be the beneficiaries of your will. This is because they should not stand to gain from your Will.

Terminologies used in a WILL

- **Testator** – The person who makes the Will
- **Beneficiary(ies)** – The person(s) who inherits property under a Will
- **Executor** – The testator's legal representative who will execute the Will. He/she is the person who distributes the assets as per the Will.
- **Codicil** – This is a legal document used to append, alter or add to an existing Will. Minor changes in the Will can be made using a Codicil
- **Probate** – It means the copy of Will certified under the seal of a Court of Competent Jurisdiction with a grant of administration to the estate of the Testator. It decides only the genuineness of the Will and not the title or existence of the properties devised.
- **Intestate** – when a person dies without making a valid Will, is termed as intestate.

Common Features of Will

- A Will is considered as a living document. You can make as many changes as you want.
- You should be more than 18 years of age
- You have to review your WILL if you buy / sell assets.
- You can change beneficiaries or the Executor names at any point of time. You may make a Codicil.
- It is not mandatory to appoint an Executor, however, it is preferred
- If possible, make sure that the two witnesses and the executor are younger than you.
- You may mention minor children as the beneficiaries, but then you will have to nominate guardians for them.
- Jointly held properties can be included in your Will. Only to the extent of your share in such assets can be distributed by you in your Will.
- For all your investments like Real estate, mutual funds, bank accounts, insurance policies etc., your Will supersedes the nomination.
- A Joint Will can be made. Both spouses can write a joint Will. However, such joint WILL can take effect only after the death of both and not during lifetime of either one.
- You can cancel or revoke the Will at any point of time.

Sample Format of a WILL

I, Shri/Smt son/daughter/wife of Shri, resident of, by religion, do hereby revoke all my previous Wills (or) Codicils and declare that this is my last Will, which I make on this (Date)..... My Date of Birth is

I declare that I am in good health and possess a sound mind. This Will is made by me and without any persuasion or coercion and out of my own independent decision only.

I appoint Shri..... Son/daughter of, resident of to be the executor of this Will. In the event Shri..... were to predecease me, then Shri....., will be the executor of this Will.

I bequeath the following assets to my Wife/Son/Daughter.....

1. My house located at.....(address).....
2. Bank balance of my savings account no.....with(bank name & bank address).....
3. My Bank fixed deposits in(bank name)....bearing(FD receipt nos).....
4. The proceeds of my Term insurance policy(Policy no)....., from.....(insurance company name).....
5. The contents of bank locker no....., with bank....., bank address.....

I bequeath the following assets to my Son/Daughter.....

1. Residential Plot no....., located at.....
2. My car with registration no.....
3. My mutual fund investments with folio numbers.....
4. Any other asset not mentioned in this Will but of which I am the owner.

All the above assets are owned by me. No one else has rights on these properties.

(Name & Signature of Testator)

Witnesses

We hereby attest that this Will has been signed by Shri.....as his last Will at(Place)..... in the joint presence of himself and us. The testator is in sound mind and made this Will without any coercion.

Signature of Witness (1)
Name & Address

Signature of Witness (2)
Name & Address

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